

DEMO WATER SERVICES BOARD

Procedures for the Prevention of Bribery and Corruption

Developed pursuant to section 9 of the Anti-Bribery Act (Cap. 79B), customised from the EACC Model Procedures (July 2024)

|                    |                                                                                                                    |
|--------------------|--------------------------------------------------------------------------------------------------------------------|
| Institution        | Demo Water Services Board (DWSB), Institution ID DEMO-002                                                          |
| Document reference | DWSB/ABC/PROC/2026/v1.0                                                                                            |
| Version / status   | Version 1.0 - ACTIVE (no predecessor)                                                                              |
| Approval           | Approved by the Board of Directors at its 32nd Meeting held on 14 August 2026, Resolution No. DWSB/BD/RES/2026/014 |
| Effective from     | 17 August 2026                                                                                                     |
| Effective to       | Until superseded; scheduled review by 31 August 2028                                                               |
| Custodian          | Ms. Grace Muthoni, Head, Legal and Compliance; Designated Senior Officer (Anti-Bribery)                            |

Evidence category: **Procedure evidence** (Sub-indicator 1). Submitted to the oversight portal on 29 September 2026, before the 30 September 2026 foundation deadline.

## 1.0 Institutional identity and scope

The Demo Water Services Board is a (fictional) state corporation that provides bulk and retail water services within its service area. It processes new connections, reads meters, bills and collects revenue, grants fee and penalty waivers under its Revenue Waiver Policy, and enforces against illegal connections. It operates a headquarters and four customer service centres, with an establishment of 286 staff.

These Procedures apply to the Board of Directors, management, all employees (permanent, contract and interns), agents, suppliers, contractors and any other third party that transacts with the Board. They cover the core mandate (new connections, metering and billing, revenue collection and waivers, enforcement) and all support services (procurement, human resource, finance, ICT and stores).

## 2.0 Commitment and objective

The Board maintains zero tolerance to bribery and corruption and is committed to the prevention, detection, deterrence, reporting of and appropriate action against bribery and other forms of corruption, in adherence to the Anti-Bribery Act, the Bribery Regulations 2022, the Attorney-General's Guidelines (2022) and these Procedures.

## 3.0 Procedure content

### 3.1 Relevant policies

These Procedures complement the Board's Code of Conduct and Ethics, Whistle-blower Protection Policy, Conflict of Interest Policy, Gifts and Hospitality Policy, Revenue Waiver Policy, Anti-Fraud Policy and the Public Procurement and Asset Disposal Act.

### 3.2 Bribery and corruption risk assessment

The Board shall identify, assess and map bribery and corruption risks across core and support functions, design controls, and monitor and review them. The assessment is overseen by top management through the Corruption Prevention Committee (CPC), conducted by the Integrity Assurance Officers (IAOs), reviewed at least annually and documented in a Risk Assessment Report and an Anti-Bribery and Corruption Mitigation Plan.

### 3.3 High-risk areas

Connection fee waivers; procurement approvals; new connection approvals; meter reading and billing adjustments; enforcement against illegal connections; procurement; recruitment; gifts and hospitality; conflicts of interest; facilitation payments; and privileged access to the billing system.

### 3.4 Managing third parties

All contracts above KES 500,000 shall include anti-bribery clauses and a conflict-of-interest declaration; new suppliers complete a due-diligence questionnaire; these Procedures are shared with all third parties on engagement. Procurement approvals (requisitions, quotation awards, local purchase orders and tender awards) are spot-checked every quarter by the IAO Committee with Internal Audit against the approval checklist, and the findings are reported to the CPC.

### 3.5 Specific controls for connection fee waivers

No new-connection fee or reconnection fee shall be waived on the authority of a single officer, and every waiver must be documented in the waiver register. Waivers are granted only at the monthly Waiver Approval Sitting held on the second Friday of each month. Every waiver requires initiation and first approval by a Revenue Officer and a recorded second approval in the waiver register by the Commercial Manager or a written delegate at manager level (MD Circular DWSB/MD/CIRC/2026/07, in force from 1 July 2026). The register cannot apply a waiver to a customer account until the second approval is recorded. The IAO Committee verifies the register in the first quarter, and Internal Audit with the IAO Committee completes an exception review of the register every quarter thereafter.

### 3.6 Reporting channels and processing of reports

Reports may be made in person to the Designated Senior Officer, in writing, to [integrity@demo-002.example.invalid](mailto:integrity@demo-002.example.invalid), through the reporting boxes at each customer service centre, through the anonymous web form, or directly to the Ethics and Anti-Corruption Commission through its official channels. Reports are acknowledged, recorded in the Reports Register, forwarded by the Designated Senior Officer to the enforcement structure and to the Commission within 24 hours, inquired into, and the outcome communicated to the Commission within 7 days of determination. Feedback is given to the informant where applicable. The Annex I reporting form of the EACC Model Procedures is adopted without change.

### 3.7 Protection of whistle-blowers, informants and witnesses

The identity of reporters is kept confidential; retaliation is a disciplinary offence; anonymous reporting is permitted; reports of victimisation are handled by the Designated Senior Officer directly with the Accounting Officer.

### 3.8 Communication and training

These Procedures are published on the staff intranet and website. All staff in high-risk functions shall be trained on them according to the cohort schedule in the Mitigation Plan; all other staff receive annual sensitisation.

### 3.9 Monitoring, evaluation and review

The CPC monitors implementation quarterly. These Procedures are reviewed every two years or earlier on a material change in risk, law or EACC guidance, using the Annex 2 compliance checklist of the EACC Model Procedures.

## 4.0 Designated implementation responsibility

| Structure                 | Holder                                                                                                     | Responsibility                                                                                                                                                                            |
|---------------------------|------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Top-level management      | Eng. Halima Odera, Managing Director and Accounting Officer                                                | Overall accountability; chairs the CPC; approves the risk assessment and mitigation plan; provides resources.                                                                             |
| Designated Senior Officer | Ms. Grace Muthoni, Head, Legal and Compliance (appointed by letter DWSB/MD/ADM/2026/044 of 17 August 2026) | In charge of prevention of bribery; receives and forwards reports; protects whistle-blowers; sets up the enforcement structure.                                                           |
| Implementation structure  | Corruption Prevention Committee (CPC)                                                                      | Oversees execution of these Procedures; meets at least once each quarter; approves quarterly reports to the Commission.                                                                   |
| Technical support         | IAO Committee (Chair: Mr. Daniel Otieno)                                                                   | Conducts risk assessment; prepares the mitigation plan and quarterly progress reports; verifies the waiver register and spot-checks procurement approvals; meets before each CPC meeting. |
| Enforcement structure     | Staff Disciplinary Committee                                                                               | Inquires into reports and recommends administrative action under the HR Policy.                                                                                                           |

## 5.0 Approval details

|                        |                                                                                               |
|------------------------|-----------------------------------------------------------------------------------------------|
| Approving authority    | Board of Directors, Demo Water Services Board                                                 |
| Meeting and resolution | 32nd Board Meeting, 14 August 2026; Resolution DWSB/BD/RES/2026/014 adopting these Procedures |
| Effective date         | 17 August 2026                                                                                |
| Next review            | By 31 August 2028                                                                             |

| Name               | Designation / role                                               | Signature                                                                            | Date        |
|--------------------|------------------------------------------------------------------|--------------------------------------------------------------------------------------|-------------|
| Mr. Tobias Kiprono | Chairperson, Board of Directors                                  |  | 14 Aug 2026 |
| Eng. Halima Odera  | Managing Director and Accounting Officer; Secretary to the Board |  | 14 Aug 2026 |

**Declaration of commitment to implement the requirements of the Anti-Bribery Act, Regulations, Guidelines and these Procedures**

The Demo Water Services Board is committed to implement these Procedures on prevention of bribery and other forms of corruption developed pursuant to section 9 of the Anti-Bribery Act, Cap. 79B.

| Name              | Designation / role                | Signature                                                                          | Date        |
|-------------------|-----------------------------------|------------------------------------------------------------------------------------|-------------|
| Eng. Halima Odera | Head of Entity: Managing Director |  | 17 Aug 2026 |

Date of next review: 31 August 2028.